

CLUBHOUSE LEASE AGREEMENT

Vintage at Hamilton Homeowners Association, Inc.
30 Sportsman Blvd., Hamilton, NJ 08690

This Clubhouse Lease Agreement (the “Agreement”) made on _____, _____, 20____, by Vintage at Hamilton Homeowners Association, Inc., (the “Landlord” or “Condominium Association”), 30 Sportsman Blvd., Hamilton, NJ (c/o RCP Management, Inc. (the “Property Manager”)) and _____, residing at _____, phone number _____ - _____ (the “Leasing Resident”).

Landlord makes available for rental a portion of the community facility located 30 Sportsman Blvd., Hamilton NJ 08690 (the “Clubhouse”).

Landlord agrees to rent the stated rental premises to the Leasing Resident, and the Leasing Resident agrees to rent the Clubhouse from Landlord for the date and time specified and upon the covenants, conditions and provisions herein set forth. The Leasing Resident agrees to abide by the Rules for leasing the Clubhouse as attached hereto.

THEREFORE, in consideration of the mutual promises herein contained and other good and valuable consideration, it is agreed:

1. Term

Landlord hereby rents the Clubhouse to the Leasing Resident and the Leasing Resident hereby rents the same from the Landlord for the Leasing Resident’s use as follows:

- The use of the premises is for: _____
- Relationship to resident: _____
- The date of the event is: _____
- The hours of the event are from: _____ to _____
(Any time beyond 11:00 PM EST but no later than 12:00 AM EST requires advanced written permission of the Board of Vintage at Hamilton Homeowners Association (the “Board”) – see below for details)
- **Maximum occupant load is 65.**

2. **Rental**

Leasing Resident shall pay to Landlord as follows (See Section 2 of the attached Rules for an explanation of the fees):

- Rent for the Clubhouse (Maximum of 6 hours) \$ 150.00
- Additional Hour \$
- Cleaning \$

- **Sub-Total** (Amount payable upon Agreement execution) \$
- **Security Deposit** (Amount payable upon Agreement execution) \$ 250.00

Provided not less than sixty (60) days notice of cancellation is given in writing, to the Property Manager, 80% of the Security Deposit shall be returned to the individual that signed the Clubhouse Lease Agreement; and, for cancellations of less than sixty (60) days, but at least fourteen (14) days in advance of the rental date; and, for reasons acceptable to the majority of the Board, 50 % of the Security Deposit shall be returned to the individual that signed the Clubhouse Lease Agreement. In all other cases of cancellation, the Security Deposit shall not be refunded.

3. **Rental Purpose**

The Leasing Resident agrees that the Clubhouse will be used exclusively for:

- | | | |
|---|--|---|
| ☐ Engagement Party | ☐ Christening | ☐ Graduation Party |
| ☐ Wedding Party | ☐ Birthday Party | ☐ Reunion |
| ☐ Bridal Shower | ☐ Holy Communion | ☐ Bar/Bat Mitzvah |
| ☐ Homecoming Party | ☐ Anniversary Party | Other (<u> </u>) |

4. **Sublease and Assignment**

Leasing Resident shall not have the right to sub-lease or assign this Agreement.

5. **Responsibilities of the Leasing Resident**

Leasing Resident Agrees To:

- Be present in the Clubhouse during the entire time the party or affair is in progress, from initial set-up to clean-up (if performed by Leasing Resident).
- Set up, take down and if necessary clean the tables and chairs required for the function. All furniture must be returned to its original location.
- Prohibit smoking within the Clubhouse, any other part of the building or within 25 feet of any entrance to the Clubhouse.

- Prohibit the use of any type of special effects, including but not limited to pyrotechnics, fireworks, firecrackers, sparklers; bonfires; or fires. A REASONABLE amount of candles placed on a cake or as part of a table centerpiece is permitted. If applicable, fireplaces cannot stay on for more than one (1) consecutive hour and must be shut off by the end of the rental period.
- Vacate the Clubhouse by 11:00 PM EST. There are **NO EXCEPTIONS TO THIS UNLESS PREVIOUSLY APPROVED IN WRITING, BY THE BOARD. IN NO CASE CAN THE BOARD APPROVE THE USE OF THE CLUBHOUSE BEYOND 12:00 AM EST. THERE IS AN ADDITIONAL FEE FOR USE BEYOND 11:00 PM EST.**
- Remove all trash prior to vacating the Clubhouse. Trash CANNOT be disposed of inside the Clubhouse. All trash is to be properly disposed of in the waste container provided in the clubhouse parking facility.
- Abide by the attached Rules.
- Accept punishment for any violation of the attached Rules or this Agreement governing the rental of the Clubhouse, which may include the forfeiture of all monies paid and a one (1) year suspension of the right to rent the Clubhouse or any portion thereof.

ACKNOWLEDGED & ACCEPTED

Resident Signature

Date

Property Manager

Date

I have received and will abide by the Rules & Regulations (attached hereto) pertaining to the Leasing of the Clubhouse _____ (initial).

**RULES AND REGULATIONS
FOR
LEASING THE VINTAGE AT HAMILTON CLUBHOUSE**

1. General

- A Clubhouse Lease Agreement must be executed and paid up front. Lease Agreements executed less than 60 days prior to the lease date can be cancelled but are subject to forfeiture of the security deposit.
- Two checks must be made payable to “Vintage at Hamilton Homeowners Association, Inc” for the sub-total and the security deposit as determined under Article 2, Rental, of the Clubhouse Lease Agreement.
- If payment is made by personal check and the check fails to clear the bank, the Leasing Resident shall pay the Homeowners Association an additional \$50.00 per returned check. This will make the Agreement null and void.

2. Leasing Fees, explanation

Clubhouse \$ 150.00

(The base fee to rent the Clubhouse for a maximum of 6 hours)

Additional Hour \$ _____

(The fee to rent the Clubhouse for an additional one (1) hour beyond 11:00 PM. Any Leasing Resident who does not vacate by 11:00 PM is subject to an additional fee of \$75.00)

Cleaning Fee \$ _____

(The fee to use a cleaning service hired by the Property Manager. Note that post-inspection can result in a reduced return of the Security Deposit if the Clubhouse is not properly cleaned by the Leasing Resident.)

Security Deposit \$ 250.00

(The refundable fee required to protect the Homeowners Association in the event that a violation(s) of the Rules occurs or the Clubhouse is not restored to its original condition. Any money not used to offset the above will be returned to the Leasing Resident within two (2) weeks of the end of the rental period.)

Provided not less than sixty (60) days notice of cancellation is given in writing, to the Property Manager, 80% of the Security Deposit shall be returned to the individual that signed the Clubhouse Lease Agreement; and, also perhaps for cancellations of less than sixty (60) days, but at least fourteen (14) days in advance of the rental date; and, for reasons acceptable to the majority of the Board, 50% of the Security Deposit shall be returned to the individual that signed the Clubhouse Lease Agreement. In all other cases of cancellation, the Security Deposit shall not be refunded.

3. Clubhouse, lease eligibility

Only a Member in good standing of the Homeowners Association may enter into, on behalf of his or her self or on behalf of a member of his or her immediate family, a Clubhouse Lease Agreement.

4. Clubhouse, defined

The areas of the Clubhouse available for use by the Leasing Resident and his or her guests are as follows:

- Clubhouse room
- Bathrooms (not for exclusive use), together with any hallway leading to the Bathrooms

All other areas of the community facility are prohibited to guests of the Leasing Resident, including, but not limited to:

- Fitness room
- Swimming Pool
- Office
- Patio
- Pickleball Court
- Janitor's closet (if applicable)

5. Insurance Indemnification

The Leasing Resident expressly agrees to defend, indemnify and save harmless the Homeowners Association, its members, agents, servants, employees and all those working in concert with the Homeowners Association, from and against any and all claims for loss or damage to property, or injury to or death of person or persons resulting from or arising in any manner, including serving alcoholic beverages, out of the Leasing Resident's (including but not limited to its guests, family, agents, invitees, and/or those on the premises) use, operation or possession of the Clubhouse furnished under this Agreement. The Leasing Resident shall also assume all costs of litigation, including attorney's fees, to indemnify the Homeowners Association, its members, its agents, servants, employees and all those working with the Homeowners Association.

The Leasing Resident agrees to release the Homeowners Association, from the responsibility and liability of personal property belonging to the Leasing Resident and/or his or her guests, family, agents, and invitees.

The Leasing Resident must provide proof of Liability Insurance.

6. Responsibilities of the Leasing Resident

It shall be the responsibility of the Leasing Resident to:

- Schedule at least one (1) day in advance an appointment with the Property Manager or member of the Recreational Committee to conduct a pre-leasing inspection of the Clubhouse
- Conduct a post-leasing inspection of the Clubhouse with the Property Manager.
- Remain present for the entire period of time the Clubhouse has been leased.
- Remove all personal items, decorations and personal equipment prior to the expiration of the rental period.
- Refrain from using tacks, pins, pushpins, scotch tape or other similar items to attach decorations. **These items are strictly prohibited.**
- Ensure that guests park only in the parking lot designated on the attached plan or other area as indicated by the Property Manager. Parking in reserved spaces, fire lanes or undesignated spots can result in fines and/or towing and will be considered a violation of the Agreement by the Leasing Resident.
- Vacate the Clubhouse no later than 11 PM unless advance, written approval is obtained from the Board.

7. Non-Smoking Facility

The entire interior of the Clubhouse, including the restrooms, and any other part of the Clubhouse facility is non-smoking. Smoking outside is not permitted within 25 feet of any exterior building door. The Leasing Resident is responsible for any violations of the no-smoking policy and the guest is subject to applicable state, county and municipal laws.

8. Alcohol Usage

Alcoholic beverages are permitted. The Leasing Resident or anyone in the Clubhouse, including but not limited to guests, agents, caterers or hired staff members, shall not serve or cause to be served alcohol to individuals less than twenty-one (21) years of age and/or to any person who appears intoxicated. THE BOARD RESERVES THE RIGHT, BUT IS NOT OBLIGATED, TO CHECK IDENTIFICATION OF ANY PERSON CONSUMING ALCOHOL. ALCOHOL IS ONLY PERMITTED IN THE CLUBHOUSE. ANY VIOLATION OF THIS SECTION CAN RESULT IN THE IMMEDIATE FORFEITURE OF RIGHTS OF THE LEASING RESIDENT OR MEMBERS OF HIS OR HER HOUSEHOLD FROM FUTURE USE OF THE ENTIRE COMMON AREA OF THE ASSOCIATION.

The **Leasing Resident** expressly agrees to defend, indemnify and hold harmless the Homeowners Association in accordance with Paragraph 4 – Insurance Indemnification of these Rules.

- **Additional Items**

- Up to 50 chairs are available free of charge.
- Please be considerate of residents whose homes/units are close to the Clubhouse (i.e., no loud music, noise, etc.). Violation of local noise ordinances is governed by the rules and regulations of the Homeowners Association as well as the local police department.
- Clubhouse leasing is available on a first-come, first-serve basis.
- For a lease to be confirmed, the Property Manager must have received a properly completed Agreement and all monies due no later than 14 days prior to the date of rental.
- The Board must approve recurring programs that utilize the Clubhouse in advance.
- Any games of chance, including but not limited to card games, casino-style games, raffles, and Bingo, require advanced written approval by the Board. In all cases where a government license is required, a copy of said license(s), must be provided to the Board in advance.
- The Leasing Resident, by signing the Agreement, agrees to abide by the Rules and Regulations set forth herein.

- The Leasing Resident, by signing the Agreement, agrees to abide by the Master Deed, By-Laws and the Rules and Regulations of the Homeowners Association.

- **Waiver**

The failure of either party to enforce any provision of the Clubhouse Lease Agreement shall not be construed as a waiver or limitation of that party's right to subsequently enforce and compel strict compliance with every provision of this Agreement.

I have read, understand and agree to abide by the Rules and Regulations stated herein.

Resident Signature

Date

Property Manager

Date